

PERFORMANCE WORK STATEMENT

**DEPARTMENT OF VETERANS AFFAIRS [VA]
INSTITUTE FOR LEARNING, EDUCATION, AND DEVELOPMENT [ILEAD]**

Articulate 360 Teams eLearning Authoring Tool

Version 1

Dated: 01 April 2026

1.0 Title: Articulate 360 Teams eLearning Authoring Tool

2.0 Background

The Department of Veterans Affairs [VA] Institute for Learning, Education and Development [ILEAD] requires engaging and compliant eLearning products to support internal training and ongoing clinical education. Articulate 360 Teams provides rapid development of interactive eLearning courses.

3.0 Scope

The Contractor shall provide annual Articulate 360 Teams subscription licenses. Subscriptions must include access to the full range of Articulate 360 platform features, including course development, training video creation, and stakeholder feedback collection and review. The solution must support Section 508 compliant content and be delivered via the Federal Risk and Authorization Management Program [FedRAMP] Authorized Articulate 360 Software-as-a-Service [SaaS] platform.

4.0 Performance Objectives

- Provide the VA with on-demand access to Articulate 360 Teams subscriptions.
- Enable rapid deployment and scalable procurement.
- Support comprehensive eLearning content creation that conforms to Section 508 and is hosted on a FedRAMP Authorized platform.

5.0 Performance Requirements

- Annual Articulate 360 Teams subscription licenses accessible VA-wide.
- Full platform feature access, including tools for creating Section 508 compliant courses and team management.
- Responsive, multi-device compatible SaaS delivery via the FedRAMP Authorized Articulate 360 platform.
- Unlimited storage, course archiving, and priority support.
- Content Library with templates, characters, images, videos, and icons to streamline development.
- Export of Sharable Content Object Reference Model [SCORM], Experience API [xAPI], and Aviation Industry Computer Based Training Committee [AICC] packages compatible with VA learning management systems [LMSs], including the VA Talent Management System [TMS] and VA TRAIN.

6.0 Performance Standards

- Standard: Subscriptions active and usable within ten [10] business days post-award.
- Quality: Priority support responses within 24 hours.
- Compliance: Section 508 and FedRAMP requirements maintained throughout the license period.
- Availability: 99.9% up time for platform access.

7.0 Deliverables

Deliverable	Description	Quantity	Due Date
7.1 Articulate 360 Teams Subscription Licenses [SL-360T]	Annual subscription includes Storyline 360, Studio 360, Rise 360, Peek 360, Replay 360 and Content Library, provisioned as Articulate 360 Teams seats.	12	Within 10 business days post-award

8.0 Quality Assurance

- Reviews and approvals by the VA Project Manager [PM] or Contracting Officer's Representative [COR].

9.0 Performance Metrics

- The Government will monitor contractor performance using the Quality Assurance Surveillance Plan [QASP] in this PWS. The QASP provides the performance standards and surveillance methods the PM, COR, or Subject Matter Expert [SME] will use to review performance.

Contract Line Item Number [CLIN]	Performance Objective	Performance Standard	Acceptable Quality Level [AQL]	Surveillance Method	Frequency	Performed by
7.1	Deliverable submitted on time	Submitted by PWS due date	100% on time	Review of deliverable	As delivered	PM COR SME

10.0 Acceptance and Reporting

The PM or COR shall certify receipt of subscriptions and recommend acceptance.

11.0 Security and Privacy

- Articulate 360 [Teams subscription] shall be delivered as a FedRAMP Authorized SaaS product, compliant with VA information technology [IT] security and privacy standards.
- The product shall be hosted within the United States, with no contractor access to VA IT systems or sensitive personally identifiable information [PII].
- All course content remains U.S. Government property, with a 45-day window for Government data export upon expiration or change of subscriptions.

12.0 Changes to the PWS

Changes must be authorized in writing by the VA Contracting Officer [CO].

13.0 Miscellaneous

- No travel is anticipated.
- The Contractor shall support Government-owned content export if licenses expire.
- Observance of Government holidays as specified by Title 5 of the United States Code [USC] §6103.

14.0 Government Recognized Holidays

Observance of all government holidays as specified by 5 USC §6103.

Unless specifically authorized in writing by the CO, no services will be provided, and no charges will be incurred and/or billed to any order on this contract on any Federal holiday. There are 11 Federal holidays set by law [5 USC § 6103]. Under current definitions, five are set by date:

- New Year's Day – January 1
- Juneteenth National Independence Day – June 19
- Independence Day – July 4
- Veterans Day – November 11
- Christmas Day – December 25

If any of the above falls on a Saturday, Friday shall be observed as a holiday. If any falls on a Sunday, Monday shall be observed as a holiday. The other six holidays are set by a day of the week and month:

- Martin Luther King's Birthday – Third Monday in January
- Washington's Birthday – Third Monday in February
- Memorial Day – Last Monday in May
- Labor Day – First Monday in September
- Columbus Day – Second Monday in October
- Thanksgiving – Fourth Thursday in November

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

Section 508 Requirements

Section 508 of the Rehabilitation Act, as amended by the Workforce Investment Act of 1998 (P.L. 105-220) requires that when Federal agencies develop, procure, maintain, or use information and communication technology (ICT), it shall be accessible to people with disabilities. Federal employees and members of the public who have disabilities must have access to, and use of, information and data that is comparable to people without disabilities.

Item that contains ICT: Articulate 360 Teams

E201 Application

E201.1 Scope: ICT that is procured, developed, maintained, or used by agencies shall conform to the Revised 508 Standards.

E205 Electronic Content

E205.1 General: Electronic content shall comply with E205.

E205.2 Public Facing: Electronic content that is public facing shall conform to the accessibility requirements specified in E205.4.

E205.3 Agency Official Communication: Electronic content that is not public facing shall conform to the accessibility requirements specified in E205.4 when such content constitutes official business and is communicated by an agency through one or more of the following:

- An emergency notification.
- An initial or final decision adjudicating an administrative claim or proceeding.
- An internal or external program or policy announcement.
- A notice of benefits, program eligibility, employment opportunity, or personnel action.
- A formal acknowledgement of receipt.
- A survey questionnaire.
- A template or form.
- Educational or training materials; or
- Intranet content is designed as a Web page.

E205.4 Accessibility Standard (WCAG 2.0): Electronic content shall conform to Level A and Level AA Success Criteria and Conformance Requirements in WCAG 2.0 (Incorporated by reference, see 702.10.1).

E206 Hardware

E206.1 General: Where components of ICT are hardware and transmit information or have a user interface, such components shall conform to the requirements in Chapter 4.

E207 Software

E207.1 General: Where components of ICT are software and transmit information or have a user interface, such components shall conform to E207 and the requirements in Chapter 5

Exception from E207.1 General: Software that is assistive technology and that supports the accessibility services of the platform shall not be required to conform to the requirements in Chapter 5.

E207.2 WCAG Conformance: User interface components, as well as the content of platforms and applications, shall conform to Level A and Level AA Success Criteria and Conformance Requirements in WCAG 2.0 (incorporated by reference, see 702.10.1).

Exceptions from E207.2 WCAG Conformance:

- Software that is assistive technology and that supports the accessibility services of the platform shall not be required to conform to E207.2.
- Non-web software shall not be required to conform to the following four Success Criteria in WCAG 2.0: 2.4.1 Bypass Blocks; 2.4.5 Multiple Ways; 3.2.3 Consistent Navigation; and 3.2.4 Consistent Identification.
- Non-Web software shall not be required to conform to Conformance Requirement 3 Complete Processes in WCAG 2.0.

E208 Support Documentation and Services

E208.1 General: Where an agency provides support documentation or services for ICT, such documentation and services shall conform to the requirements in Chapter 6.

E301 General

E301.1 Scope: The requirements of Chapter 3 shall apply to ICT where required by 508 Chapter 2 (Scoping Requirements), 255 Chapter 2 (Scoping Requirements), and where otherwise referenced in any other chapter of the Revised 508 Standards or Revised 255 Guidelines.

E302 Functional Performance Criteria

302.1 Without Vision: Where a visual mode of operation is provided, ICT shall provide at least one mode of operation that does not require user vision.

302.2 With Limited Vision: Where a visual mode of operation is provided, ICT shall provide at least one mode of operation that enables users to make use of limited vision.

302.3 Without Perception of Color: Where a visual mode of operation is provided, ICT shall provide at least one visual mode of operation that does not require user perception of color.

302.4 Without Hearing: Where an audible mode of operation is provided, ICT shall provide at least one mode of operation that does not require user hearing.

302.5 With Limited Hearing: Where an audible mode of operation is provided, ICT shall provide at least one mode of operation that enables users to make use of limited hearing.

302.6 Without Speech: Where speech is used for input, control, or operation, ICT shall provide at least one mode of operation that does not require user speech.

302.7 With Limited Manipulation: Where a manual mode of operation is provided, ICT shall provide at least one mode of operation that does not require fine motor control or simultaneous manual operations.

302.8 With Limited Reach and Strength: Where a manual mode of operation is provided, ICT shall provide at least one mode of operation that is operable with limited reach and limited strength.

302.9 With Limited Language, Cognitive, and Learning Abilities: ICT shall provide features making its use by individuals with limited cognitive, language, and learning abilities simpler and easier.

501 General

501.1 Scope: The requirements of Chapter 5 shall apply to software where required by 508 Chapter 2 (Scoping Requirements), 255 Chapter 2 (Scoping Requirements), and where otherwise referenced in any other chapter of the Revised 508 Standards or Revised 255 Guidelines.

Exception from E501.1 Scope: Where Web applications do not have access to platform accessibility services and do not include components that have access to platform accessibility services, they shall not be required to conform to 502 or 503 provided that they conform to Level A and Level AA Success Criteria and Conformance Requirements in WCAG 2.0 (incorporated by reference, see 702.10.1).

503 Applications

503.1 General: Applications shall conform to 503.

Records Management Language for Contracts

When Federal agencies acquire goods or services, they need to determine what Federal records management requirements should be included in the contract. Federal contractors often create, send, or receive Federal records. Federal contracts should provide clear legal obligations describing how the contract employees must handle Federal records.

Agency records officers, procurement counsel, and acquisitions officers must discuss how to integrate records management obligations into their existing procurement processes. NARA has developed the following language to be included as an agency-specific term and condition in Federal contracts for a variety of services and products. The majority of contracts should include language on records management obligations, but each contract should be evaluated individually. For example, the data-rights paragraph (Paragraph 10 below) may not be appropriate for all contracts. Instead, agencies may be better served by one of the established data-rights clauses in the Federal Acquisition Regulations.

This language should not replace specific records management requirements included within Federal information system contracts.

RECORDS MANAGEMENT OBLIGATIONS

A. *Applicability*

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. *Definitions*

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term “Federal record”:

1. includes ILEAD records.
2. does not include personal materials.
3. applies to records created, received, or maintained by Contractors pursuant to their ILEAD contract.
4. may include deliverables and documentation associated with deliverables.

C. *Requirements*

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
4. ILEAD and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of ILEAD or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal,

defacing, alteration, or destruction of records, Contractor must report to ILEAD. The agency must report promptly to NARA in accordance with 36 CFR 1230.

5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to ILEAD control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).
6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and ILEAD guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with ILEAD policy.
8. The Contractor shall not create or maintain any records containing any non-public ILEAD information that are not specifically tied to or authorized by the contract.
9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
10. ILEAD owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which ILEAD shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take ILEAD-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

D. Flow down of requirements to subcontractors

1. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.